

		Adam Kocaj, Esq. of Kocaj Law, P.C. will be relieved as counsel of record for Plaintiff effective upon the filing of the proof of service of the signed order upon the parties. Mr. Kocaj shall give notice of the ruling.
5.	2022-1276938 Uthman vs. Angel Babies Surrogacy & Egg Donation LLC	Plaintiffs David K. Uthman and Wendace C. Witt's Motion to Amend Judgment to Award Attorney's Fees, Prejudgment Interest and Costs is granted in part as set forth below. <u>Prejudgment Interest</u> The Judgment provides that Defendants unlawfully withheld and concealed Plaintiffs' \$67,400. (ROA 139, pg. 2:15.) Plaintiff David K. Uthman was awarded \$267,400 plus interest pursuant to Civil Code § 3288; and Plaintiff Wendace C. Witt was awarded \$200,000, plus interest pursuant to Civil Code § 3288. (Judgment, ROA 139. at pg. 2:17-20.) Civil Code § 3288 provides for awarding prejudgment interest in tort and certain other non-contractual actions. Prejudgment interest pursuant to Civil Code § 3288 is 7 percent per annum. The damages base for the interest calculation consists of the ascertainable, economic losses. (<i>Steinfeld v. Foote-Goldman Proctologic Medical Group, Inc.</i> (1997) 60 Cal.App.4th 13, 21.) Thus, prejudgment interest is calculated using \$67,400 that was taken by Defendants. $\\$67,400 \times 7\% = \\$4,718/\text{yr.}$ Thus, $\\$4,718$ divided by 365 days = $\\$12.93$ prejudgment interest per day. The accrual start date runs from the date of the tortious act proximately causing the plaintiff's damages, or 11/21/19. (See, <i>Newby v. Vroman</i> (1992) 11 Cal.App.4th 283, 289.) Thus, prejudgment interest is calculated from 11/21/19 until the date of Judgment, 3/19/26, which is 2310 days (<i>not</i> 1579 days as claimed by Plaintiffs). $2310 \text{ days} \times \\$12.93/\text{day} = \\$29,868.30$ Accordingly, prejudgment interest in this matter is \$29,868.30. <u>Attorney's Fees</u> A. <u>Entitlement to Fees</u> When authorized by contract, statute or "law," reasonable attorney fees are "allowable costs." (Code Civ. Proc. § 1033.5(a)(10)(A), (B) & (C).) Penal Code Section 496 states: "(c) Any person who has been

injured by a violation of subdivision (a) or (b) may bring an action for three times the amount of actual damages, if any, sustained by the plaintiff, costs of suit, and reasonable attorney's fees."

On 3/19/26, the Court entered default judgment in favor of Plaintiffs and against Defendants. (ROA 139.) The Court found that the Defendants, and each of them, intentionally violated "Family Code § 7961 and under false pretenses, and these Defendants unlawfully withheld and concealed Plaintiff's \$67,400, which constitutes theft by conversion and/or fraud as contemplated by Penal Code §496(c)...." (ROA 139, pg. 2:13-16.)

Thus, Plaintiffs are entitled to attorney's fees.

B. Reasonable Fees

A court assessing attorneys' fees begins with a "touchstone" or "lodestar" figure based on the "careful compilation of the time spent and reasonable hourly compensation of each attorney ... involved in the presentation of the case." (*Serrano v. Priest* (1977) 20 Cal.3d 25, 48). "The reasonable hourly rate is that prevailing in the community for similar work." (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095 (internal citation omitted)). As to the reasonableness of the hours, "trial courts must carefully review attorney documentation of hours expended; 'padding' in the form of inefficient or duplicative efforts is not subject to compensation." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132). The court may make a downward adjustment if the billing entries are vague, "blockbilled," or unnecessary. (See, 569 *East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426 (trial court properly adjusted downward the hour component for the lodestar calculus where, among other findings, there was only one cause of action and the issues were not especially novel or complex)).

"The burden is on the successful party to prove the appropriate market rate to be used in calculating the lodestar. [Citation] However, the moving party may satisfy its burden through its own affidavits, without additional evidence. [Citation] Moreover, in assessing a reasonable hourly rate, the trial court is allowed to consider the attorney's skill as reflected in the quality of the work, as well as the attorney's reputation and status. [Citation]." (*MBNA American Bank, N.A. v. Gorman* (2006) 147 Cal.App.4th Supp. 1).

If the moving party meets its burden, the burden shifts to the opposing party to produce admissible evidence sufficient to show that the rates requested are not reasonable. (See, *Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 155 [finding court erred in reducing rates where evidence of reasonableness of

rate requested was undisputed]; *Davis v. City of San Diego*, 106 Cal.App.4th at 904.)

“It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court [Citations.] The value of legal services performed in a case is a matter in which the trial court has its own expertise. [Citation.] The trial court may make its own determination of the value of the services contrary to, or without the necessity for, expert testimony.” (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1096).

Here, Plaintiffs and their counsel have a hybrid-retainer agreement on this case. The retainer agreement provides for a more than reasonable hourly rate of \$250 per-hour and a contingency fee of 25% of the amount awarded to Plaintiffs, if any.

Counsel has established 172.7 hours of work at \$250/hr. (Perez, Ex. A) which totals \$43,175 (172.7 x \$250); not \$58,850 as claimed in the motion, or the \$56,350 claimed in Perez’s Declaration. Thus, \$43,175 for billable hours is recoverable.

With regard to the 25% contingency fee, while Plaintiffs have shown they are entitled to said fee, Plaintiffs’ numbers, as explained above, are also incorrect. Plaintiffs claim pre-judgment interest of \$20,416.47, but that number is actually \$29,868.30.

In reality, Plaintiffs’ prejudgment interest is substantially more at \$29,868.30. Uthman and Witt were awarded total damages of \$467,400 (\$267,400 awarded to Uthman + \$200,000 to Witt).

Damages of \$467,400 + prejudgment interest of \$29,868.30 equals \$497,268.30.

Twenty-five percent of \$497,268.30 is \$124,317.08. Thus, the 25% contingency is \$124,317.08.

The total amount of attorney’s fees awarded is \$167,492.08 (\$43,175 + \$124,317.08)

Costs

In addition to the attorney’s fees and prejudgment interest sought Plaintiffs also request \$2,290.26 in costs.

Under Code of Civil Procedure § 1032(b), except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding. Penal Code § 496(c) awards costs of suit as part of the civil remedy,

		making costs an element of the statutory recovery. Code of Civil Procedure § 1033.5(c)(5)(A) further provides that where a statute refers to the award of costs and attorney’s fees, attorney’s fees are an item and component of the costs to be awarded. Rules of Court, Rule 3.1700(a)(1) provides that a prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5, or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The cost memorandum procedure under Rule 3.1700 applies only to cost items to which a party is entitled as a matter of right, because the rule requires the clerk to immediately enter the costs on the judgment if the opposing party does not move to strike or tax costs. (<i>Neeble-Diamond v. Hotel California By the Sea, LLC</i> (2024) 99 Cal.App.5th 551, 558.) By contrast, costs that require a court determination – such as the attorney’s fees sought above – may not be immediately entered by the clerk and therefore do not need to be included in a memo. of costs. (Ibid.) Because Penal Code § 496(c) awards costs of suit as a matter of right to an injured party who prevails, those costs fall squarely within the scope of Rule 3.1700. A party seeking to recover ordinary costs of suit under § 496(c) must therefore file a memorandum of costs in compliance with Rule 3.1700. Here, no Memorandum of Costs was filed. Thus, Plaintiffs are not entitled to recover the requested costs and the motion is denied as to costs. <u>Conclusion</u> The motion is granted as to attorney’s fees of \$167,492.08; and prejudgment interest of \$29,868.30. The request for costs is denied.
6.	2023-1334704 Woodforest National Bank vs. Nissani	Plaintiff Woodforest National Bank’s motion for summary judgment against each of defendants Hooman Nissani (“Nissani”), Sean Leoni (“Leoni”), Jalil Rashti (“Rashti”), Babak Sarraf (“Sarraf”), and H.S.K. Investments, LLC (“HSK Investments”) is granted as to Defendants Nissani and HSK Investments; it is denied as to Defendants Leoni, Rashti, and Sarraf. [ROA #120.]